



Code of Student Conduct and Parent Handbook

*Serving the Communities of
Burnham, Calumet City, Dolton and South Holland:*

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Ph.: (708) 841-3606

DIEKMAN (PRE-K-6)

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NEW BEGINNINGS LEARNING ACADEMY (K-6)

15703 Clyde Ave., South Holland, IL 60473
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CAROLINE SIBLEY (K-6)

1550 Sibley Blvd., Calumet City, IL 60409
Ph.: (708) 868-1870

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1655 153rd St., Calumet City, IL 60409
Ph.: (708) 868-9470

MIDDLE SCHOOLS

1650 Pulaski Rd., Calumet City, IL 60409
Creative Communications Academy (CCA)
Ph.: (708) 868-7585
School of Fine Arts (SOFA)
Ph.: (708) 868-7565
Science, Technology, Math, and Engineering (STEM)
Ph.: (708) 868-7595

“Let’s Do More in 24!”



PRE-K EXPANSION CLASSROOMS

Children’s Home Center
1652 Dolton Rd., Calumet City, IL 60409
Ph.: (708) 251-1203

Nurturing Development Learning Academy
2530 E. State St., Burnham, IL 60633
Ph.: (708) 868-6400

Grandma Jones Daycare
777 Sibley Blvd., Calumet City, IL 60409
Ph.: (708) 862-0366

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TITLE I PARENT COMPACT

The parents of the students participating in activities, services, and programs funded by Title I, Part A of the Elementary and Secondary Education Act (ESEA) (participating children), *agree that this compact outline how the staff, parents, and students will share the responsibility for improved student academic achievement and the means by which the staff and parents will build and develop a partnership that will help students achieve the State's high standards. This school-parent compact is in effect during the 2023-2024 school year.*

SCHOOL RESPONSIBILITIES

The Staff of Dolton School District 149 will provide high quality curriculum and instruction in a supportive and effective learning environment that enables the participating students to meet the state's student academic achievement standards by:

- Engaging students in active learning;
- Utilizing research-based teaching techniques;
- Examining and adjusting practices according to relevant and current educational research;
- Aligning courses to national and state standards;
- Providing programs for all levels of students
- Preparing students for state standardized tests;
- Providing thoughtful and meaningful assignments so students can practice acquired skills and knowledge;
- Notifying parents when a student's grade falls below 70%
- **Communicate student achievement and progress with parents by** providing frequent reports of their child's progress.

INTERIM PROGRESS REPORT DATES

- Friday, September 22, 2023
- Wednesday, December 8, 2023
- Friday, February 16, 2024
- Friday, April 26, 2024

SEMESTER REPORT CARD DATES

- Friday, November 3, 2023
- Friday, January 26, 2024
- Thursday, March 28, 2024
- Friday, May 24, 2024

Maintain reasonable access for parents and students by:

- Updating District website
- Holding Parent/Teacher Conferences
- Providing names and responsibilities of Student Service Personnel including counselors, social workers and psychologists,
- Posting email addresses on the school website;
- Conducting Parent/Student/Administration conferences upon request;
- Responding to parent emails or phone calls within 48 hours on school days;
- Ensuring reasonable access and open hours for student to seek out additional support;

PARENT/GUARDIAN RESPONSIBILITIES

As a Parent/Guardian of a Dolton School District 149 student, I share in the responsibility for my child's education. My goals will be to engage my child's curricular and co-curricular endeavors, and to stress the importance of education. I will support my child's learning, while gradually increasing students' independence and responsibility.

As a parent of a student enrolled at Dolton School District, I will:

- **Ensure that my child is focused on his/her academic achievement by:**
 - ✓ Establishing dialogue with my child about learning;
 - ✓ Encouraging my child's preparation for state standardized testing;
 - ✓ Reinforcing the importance of performing well on all assignments and assessments;
 - ✓ Helping my child transfer learning to real world applications;
 - ✓ Staying informed on my child's education.
- **Familiarize myself with district communication and staff to help support my child and check his or her progress by:**
 - ✓ Attending Parent/Teacher Conferences on November 3, 2023 from 1:00-7:00 pm and January 26, 2024 from 9:00am-3:00 pm.
 - ✓ Monitoring my child's attendance, homework completion, internet usage, including the sites visited, television viewing, including the quality of the programs viewed, and grades and attendance through the Skyward Parent Portal;
 - ✓ Getting to know my child's teacher and school social worker;
 - ✓ Promptly reading all notices from the school, or the school district, either received by my child, by mail, or the website and responding when necessary.
 - ✓ Checking the school website for upcoming events, important information, and emergency information.

- **Discuss the importance of social obligations and decisions by:**
 - ✓ Promoting positive use of my child's extracurricular time;
 - ✓ Monitoring for significant changes in my child's behavior and attitudes;
 - ✓ Getting to know the students my child associates with and meeting their parents and creating an open line of communication to better monitor out of school activities.
- **Participating as appropriate, in decisions relating to my child's future by:**
 - ✓ Having frequent conversations with my child about future plans.

STUDENT RESPONSIBILITIES:

I will engage in academic and/or extracurricular activities to grow as a person. I accept responsibility to improve myself academically and to work to develop the necessary skills to be an active citizen and a lifelong learner.

As a student enrolled in Dolton School District 149, I will:

- **Commit to my academic success** and work to grow as a learner by:
 - ✓ Doing my assignments when required and completing within the necessary time frame;
 - ✓ Admitting when I need help and seeking out assistance;
 - ✓ Reading at least 30 minutes every day outside of school time;
 - ✓ Engaging in the educational process through participation;
 - ✓ Preparing myself for state standardized tests;
 - ✓ Preparing myself for middle and high school requirements (PSAT Assessment).
- **Maintain my personal integrity** and challenge my peers to follow suit by:
 - ✓ Embodying Excellence, Humanization, and Pride!
- **Contribute positively to the school culture and community by:**
 - ✓ Following all school rules as outlined in the student handbook;
 - ✓ Respecting my peers and treat them as I would like to be treated;
 - ✓ Respecting teachers and staff and follow their directions;
 - ✓ Respecting my school by cleaning up after myself;
 - ✓ Giving my parents, or the adult who is responsible for my welfare, all notices and information received from my school.

- **Assume responsibility for my future including setting personal/career goals by:**
 - ✓ Attending informational presentations offered through guidance that help outline potential career paths;
 - ✓ Discussing with parents, teachers, and community members about my future opportunities.

BOARD OF EDUCATION

The School District 149 Board of Education is composed of seven members who are residents of the District. All Board meetings are open to the public. Questions and comments from the public about school-related matters are welcomed and appreciated. Please visit our website for updated information at www.sd149.org.

During regular meetings, time is provided for the public to address the Board. Other ways in which interested persons may communicate their ideas and concerns to the Board are:

~ Writing a letter to the Board at:

The Board of Education
Office of the Superintendent
292 Torrence Avenue
Calumet City, Illinois 60409-1941

- *Requesting to be placed on the agenda of the Board meeting. The request must be made in writing to the Board secretary or the Superintendent at least seven days before the regular meeting. The request should state the purpose of the proposed agenda item. The Board reserves the final right to determine the contents of the agenda.*
- *Requesting to attend **committee meetings** of the Board that are scheduled from time to time and asking to address the Board on the specific area under consideration by the committee.*

BUS TRANSPORTATION

Free bus transportation is provided for those students residing more than 1½ half miles from school. Certain areas designated as *hazardous* qualify for free transportation. *Hazardous* areas are assigned by the Illinois Department of Transportation.

In some instances, bus transportation is available for students who live less than 1½ miles from school in non-hazardous route areas on a fee basis. **The bus fees for non-hazardous routes for the 2023-2024 school year have been waived by the Board of Education. The Board recognizes the economic crisis that residents have been experiencing.** All students who ride the bus are expecting to ride both the am and pm routes daily.

If students miss the bus on the way to school, they must call their parents and have their parents contact the school immediately. District 149 administrative staff will work with the parents to ensure that students get to school safely. If students miss a school bus at the end of the school day, they are expected to report to the office and their parents, guardians, or designated guardians will be telephoned. Students who are considered to be abandoned at the end of the day may be taken to the local police department. There may be days on which the bus is running behind schedule. Even so, parents are assured that the bus will make all of its stops every day (unless school has been closed). If a bus is consistently late or more than ten minutes late on a particular day, parents may contact their child's school main office.

For the safety of students, strict self-discipline is required or bus privileges will be suspended or revoked. Any damages incurred to the bus will be charged to the rider responsible.

For the safety of all students all buses will have a bus monitor to ensure that bus rules are being followed.

E.S.S.A. TITLE I PROGRAM

The Elementary and Secondary Education Act of 1965 is being reauthorized. Funds from ESSA support school-wide instructional programs throughout the District. The purpose of this Title I Program is to ensure that all children have a fair, equal, and significant opportunity to obtain a high-quality education and reach, at a minimum, proficiency on challenging state academic achievement standards and state academic assessments. These school-wide programs provide children an enriched and accelerated educational program, including additional services that increase the amount and quality of instructional time. They also promote school-wide reform and ensure the access of children to effective, scientifically based instructional strategies and challenging academic content.

FAMILY ENGAGEMENT AND PARENTAL INVOLVEMENT

Family Engagement and Parental Involvement is an integral part of the Title I School-Wide Program. Parents are strongly encouraged to be actively involved in their child's education at school. An introductory Title I parent meeting is held in the fall of each year. Additional parent meetings are scheduled monthly at each District School. School District 149 recognizes that parents are full partners in their child's education and must be included, as appropriate in decision-making and on advisory committees to assist in the education of their child.

School District 149 provides educational programs and services designed to meet the needs of students on a district-wide basis. The educational environment does not discriminate against any individual for reasons of race, religion, color, sex, national origin, economic status, or handicap. The Board of Education is committed to providing each attendance center with equivalency in curriculum

materials, instructional supplies, equipment, teachers, administrators, and auxiliary personnel. Parents, guardians and members of the community shall be welcome to exercise their right to express a particular concern in relation to the School District 149 Title I Program.

Procedures for expressing Title I concerns are as follows:

The proper channeling of expressions of concern involving instruction, discipline, learning materials and/or general program operation is as follows:

- Classroom Teacher
 - Principal
 - Directors of the Office of Teaching and Learning
 - Assistant Superintendent
 - Director of District Services
 - Business Manager
 - Superintendent
 - Board of Education
 - State Board of Education
-
- a) Specific time limits for investigation and resolution of complaints at the district level shall not exceed thirty days. Opportunities for the complainant or the complainant's representative, or both, to present evidence, including an opportunity to question the parties involved, shall be provided.
 - b) The right to appeal the final written District resolution of the concern to the State Board of Education shall be provided. This shall occur within thirty days after the receipt of the written decision.
 - c) These procedures shall be disseminated to interested parties, including all District personnel and community stakeholders through meetings, building newsletters, and District publications.

ATTENDANCE

The academic progress of elementary school students depends greatly upon punctuality and regularity of attendance. The basic foundation of education is built upon students attending school on time daily. The absent student is always at a disadvantage because it is impossible for teachers to repeat the learning experience that took place in a classroom situation. However, an ill child should not be in school since this may result in his or her health being further impaired and may result in other children being exposed to a communicable disease, i.e., chicken pox, ring worm, etc. Absent students are still responsible for any assignments done in class or assigned for homework.

In order to make sure that absent children are safe at home, parents are asked to call the school by 9:00am on the days when the child is absent. If the school has not been contacted by the designated time, the school will contact the parents.

A note stating the case of the absence MUST accompany the student upon his/her return to school. *The note should include:*

1. The date(s) of the child's absences
2. The specific reason for the absence or a doctor's note and the signature of the parent or guardian.

Any student who is absent during the day may not participate or attend any after school activities on that day.

Absences due to personal illness, serious illness in the family or emergencies that may occur, which in the judgment of the principal are justified, shall be considered excused. Any other absence shall be considered unexcused. If the absence is excused, students will be allowed to make-up the work missed during the absence. A parent of a student who merits an excused absence assumes the responsibility to check with the teacher about specific work to be made up. If the work is not made up within a reasonable amount of time, then the student will not be given credit for missed assignments. No make-up work will be allowed for unexcused absences. There will be no deduction on grades already earned.

Students who are absent eighteen (18) or more days of school may be retained in the current grade unless extenuating circumstances causing the absences (hospital confinement, quarantine by doctor, etc.) The eighteen (18) days are allowed for normal illnesses and childhood diseases such as colds, flu, chicken pox, etc.

Parents planning a vacation which requires a child's absence from school should discuss the matter with the child's teacher well in advance of departure. Make-up work following the vacation should be completed as directed by the teacher. Parents requesting absences of greater than ten (10) days will be asked to transfer their student from the school or re-register upon their return to the district.

Early dismissal for dental or doctor's appointments, etc., must be requested in writing by parents. No child will be permitted to leave school with an unidentified person. Parents, guardians or a parent's designee must sign the child out of the school, in the office, before he or she leaves the building. Students are not allowed to accept rides home from friends or neighbors without prior notification.

In order for a student to have a full day of attendance, the student must meet a minimum of 300 minutes of instruction, with the a.m. and p.m. attendance of 150 minutes each. Should a student not meet those minimum requirements, a half-

day absence shall be recorded. To avoid this situation, please make sure your child is on time each day.

TRUANCY

1. **Truancy:** District 149 considers a student to be truant who is absent without a valid cause for a school day or portion thereof, as defined in Chapter 122, Article 262a of the Illinois School Code.
2. **Chronic Truancy:** District 149 considers a student to be a chronic truant who is absent without a valid cause for 5% or more of the previous 176 regular attendance days, as defined in Chapter 122 Article 262a of the Illinois School Code.
3. **Resources and Supportive Services:** The following resources and supportive services are available to students with attendance problems.
 - a) Conference with school personnel
 - b) Counseling services with guidance counselors, school psychologists, and/or social workers
 - c) Psychological testing
 - d) Placement in alternative educational programs.
 - e) Special education assessment and placement when appropriate
 - f) Community agency services
4. **Truant Minor:** In accordance with Chapter 122, Article 262a of the Illinois School Code, District 149 considers a truant minor to be a chronic truant to whom the above resources and supportive services have been provided and have failed to result in the remediation of the chronic truant, or have been offered and refused by the parent(s), guardian(s), and/or student.
5. **Referral of Chronic Truants:** District 149 staff will refer chronic truants to the Regional Superintendent of Schools, Cook County. **In addition, retention will be considered for students who have 5% of unexcused absences for the school year.**
6. **Punitive Action:** In accordance with Chapter 122, Article 262a of the Illinois School Code, District 149 schools will take no punitive action, including out of school suspensions, expulsions, or court action, against chronic truants for such truancy unless the available resources and supportive services have been provided to the student.

BICYCLES

Students are discouraged from riding bicycles to school. Students whose parents are willing to assume all responsibility for their child's bicycle riding may ride to school. Students riding bicycles to school do so at their own risk and the school will assume no responsibility for bicycle loss or damage. Bikes must be walked on the grounds or sidewalks around buildings. Motor driven vehicles such as mini-bikes and motorcycles may not be used as pupil transportation and are prohibited on school premises.

CONFERENCES

Conferencing between parents and teachers provides an effective method of evaluating student progress. Parents and teachers are urged to consult with each other concerning the child at mutually convenient times. Conference days and evenings are scheduled twice each school year to give parents an opportunity to meet with teachers. Please check the District website for calendar activities and important events.

Teachers are available approximately ten minutes before school and at other specific times during the day. Conferences can be arranged by sending a written request to the teacher or by calling the school office to make an appointment. Telephone numbers of all District 149 schools are listed on the first page of the Handbook section of this booklet.

CURRICULUM

The curriculum in District 149 schools is based on the Illinois State Common Core Standards for each subject area. Student objectives based on these standards provide the basis for instruction. All students receive instruction in the basic skill areas of English, Language Arts, Mathematics, Science, Social Studies, Health and Physical Education. For information about our curriculum contact **Martiae Jenkins-Alexander or LaToyla Jones, Directors of the Office of Teaching and Learning at (708) 868-8300.**

Enrichment opportunities are provided within the classroom through differentiated assignments and outside the classroom through possible involvement in computer assisted instruction, fine arts instruction, media center programs, after-school academics and student enrichment programs. Remediation plans may include possible involvement in Multi-Tiered System of Supports (MTSS) using Tier I, Tier II, and Tier III strategies. Special Education placement and after-school student assistance programs are also available.

The educational programs at C.C.A., S.O.F.A. and S.T.E.M. are using innovative teaching methods for students in seventh and eighth grade. In addition to the basic skill areas; fine arts, computer skills, and physical education are part of the program at this level. Accelerated courses are available for qualified students in language arts and mathematics.

PRESCHOOL SCREENING

A free screening program for pre-school age children is provided several times throughout the school year. An appointment is required. Dates for the preschool screenings are posted on the district website. Free preschool screening dates for the 2023-2024 school year are as follows:

- | | |
|----------------------|-------------------|
| ○ August 17, 2023 | January 17, 2024 |
| ○ August 18, 2023 | February 21, 2024 |
| ○ September 20, 2023 | March 20, 2024 |
| ○ October 11, 2023 | April 24, 2024 |
| ○ November 8, 2023 | May 1, 2024 |

Parents/guardians are strongly encouraged to have all children ages 3 and 4 be screened. **Please call Diekman School at (708) 841-3838.**

The Preschool screening program is conducted by School District 149 personnel for children who are at least two years six months of age through age four and not enrolled in kindergarten for the fall term. A child's skills in the area of concept development/pre-academics, motor skills, speech/language, self-help, and behavior and are included in the screening process. A social history and medical interview are conducted as well as vision and hearing screening. Parents(s)/guardian(s) will participate in an exit interview at the conclusion of the screening to review the results of the preschool screening. The screening process will indicate if a student is at risk for school failure and/or if there is a suspicion of a learning difficulty potentially caused by a disability. Parents will receive an eligibility notification form documenting the results of the screening and when applicable, a comprehensive case study evaluation for special education services will be recommended and conducted upon written consent.

KINDERGARTEN PROGRAM

We are pleased to offer an all-day kindergarten program at all of our elementary schools. School District 149 recommends the all-day kindergarten program as it allows more time for instruction, enrichment, reinforcement and intervention. All Kindergarten students attend school from 9:00 a.m. - 3:30 p.m.

ELL/BILINGUAL SERVICES

Enrollment in the Transitional Bilingual or Transitional program of instruction is contingent upon a language assessment administered to all students based on the Home Language Survey. The language assessment identifies the English Language proficiency and placement.

Students enrolled in the program will receive instruction in the native language with transition into English. Students may qualify for full or part-time placement based on the English language proficiency. The program assists students towards achieving academic success in all subjects and in the learning of English. Students who qualify for part-time services will benefit from the Pull-out model. Students enrolled in the Pull-out model will receive instruction based on student needs within the required subject matter. Students are tested annually with the "Access" test in order to determine growth in the English Language. Students receive services until the State requirement of English Language Proficiency is met. For additional information, please contact **Theresa Smith**, Transitional Bilingual Education and Transitional Program of Instruction Administrator at 708-868-8300.

IDENTIFICATION OF ELL STUDENTS

For the purpose of identifying students of a language background other than English, districts administer a Home Language Survey (HLS) to every newly enrolled student. If the survey indicates that a language other than English is spoken in the home, the district must assess the student for English language proficiency using the screening instrument prescribed by ISBE.

The screening must take place within 30 days after the student enrolls in the district at the beginning of the school year to determine the student's eligibility for ELL services and the appropriate placement for the student. Each student scoring as not "proficient," as defined by the State Superintendent of Education, is considered an ELL student eligible for ELL services.

ANNUAL EXAMINATION OF ELL STUDENTS

Section 14C-3 of the Illinois School Code (105 ILCS 5/14C-3) requires that all K-12 students identified as ELL be tested annually for English proficiency in four language domains: aural comprehension (listening), speaking, reading, and writing. Since SY 2006, ISBE has prescribed the **ACCESS for ELLs** for the annual English proficiency assessment of ELL students.

PROGRAM OPTIONS

105 ILCS 5/14C-3 also requires that one of two types of programs be provided for all PK-12 ELL students to help them become proficient in English and transition into the general education curriculum.

TRANSITIONAL BILINGUAL EDUCATION (TBE)

Legislation passed in 1973 requires Illinois school districts to offer a TBE program when 20 or more ELL students of the same language classification are enrolled in the same attendance center. TBE programs must provide instruction in the home language of students and in English in all required subject areas, as well as instruction in English as a second language (ESL). TBE teachers are required to be certified by the state of Illinois and possess the appropriate bilingual and/or ESL endorsement/approval. Bilingual teachers must demonstrate proficiency in the language(s) spoken by students and in English.

TRANSITIONAL PROGRAM OF INSTRUCTION (TPI)

If an attendance center has an enrollment of 19 or fewer ELL students from any single non-English language, it may elect to offer a TPI program in lieu of a TBE program. TPI programs must include instruction or other assistance in a student's home language to the extent necessary as determined by the student's level of English proficiency. TPI services may include, but are not limited to, instruction in ESL, Language Arts in the student's home language, and history of the student's native land and the United States. Like TBE teachers, TPI teachers must hold the proper teacher certifications and endorsements/approvals for their teaching assignments.

Districts that provide at least five periods of TBE/TPI services a week to ELL students may apply for state TBE/TPI funding which reimburses some of the excess costs of providing these services based on a prorated formula.

ENGLISH LANGUAGE LEARNER'S ASSESSMENT DATA

ACCESS for ELLs® - ACCESS for ELLs® stands for Assessing Comprehension and Communication in English State-to-State for English Language Learners. It is a large-scale standards-based and criterion-referenced assessment designed to measure the English language proficiency of ELL students. This test is administered annually to all ELL students in Illinois.

ACCESS Test Dates: January 17, 2024– March 5, 2024

ACCESS for ELLs 2.0 is a secure large-scale English language proficiency assessment administered to Kindergarten through 12th grade students who have been identified as English language learners (ELLs). It is given annually in WIDA Consortium member states to monitor students' progress in acquiring academic English. ACCESS for ELLs 2.0 is only available to Consortium member states.

The **WIDA Consortium** will continue the new summative assessment from grades 1–12. An online assessment will replace the earlier paper-based assessment, ACCESS for ELLs, although a paper-based assessment will continue to be available according to each state's guidelines. The Kindergarten and Alternate ACCESS for ELLs assessments will not change from previous years and remain paper-based.

ACCESS for ELLs 2.0 is aligned with the WIDA English Language Development Standards and assesses each of the four language domains of Listening, Speaking, Reading, and Writing.

TESTING

School District 149 administers many tests to students. The following is a brief description of some of these:

Classroom Tests and Benchmark Tests - are administered by the teacher periodically throughout the year. These tests are of utmost importance as they evaluate each child's understanding of the material covered in class on a day-to-day basis. Parents can assist their child with such tests by emphasizing their importance and in helping their child prepare for them.

The District remains excited about NWEA/MAP local assessment this school year. We will assess students during the fall, winter and spring. We believe this new assessment will give us a better picture of how well each child is progressing in core subject areas and provide teachers opportunities to develop interventions for students who are struggling academically. The new local assessment will also allow teachers to collaborate more with parents about their child's academic strengths and weaknesses. Parents will be properly informed of the data and the district will analyze the data as well as publicize it on our website.

- **NORTHWEST EVALUATION ASSOCIATION, MEASURES OF ACADEMIC PROGRESS (NWEA/MAP LOCAL ASSESSMENT)**

1st-8th grade

- ✓ **BOY – September 2023**
- ✓ **MOY – January 2024**
- ✓ **EOY – May 2024**

Please make sure children are in school on these important test days.

STATE TESTING

Every year students in 3rd-8th eighth grades will take the Illinois Assessment of Readiness, (IAR) in English Language Arts and Mathematics.

The results of such tests give an indication of how well an individual student, school and district are doing in meeting the State and Common Core Standards.

Please make sure children are in school on these important test days.

- **ILLINOIS ASSESSMENT OF READINESS (IAR)**

3rd – 8th Grade

- ✓ **March 4th - April 19, 2024 (online)**
- ✓ **March 4th - April 5, 2024 (paper)**

- **ILINOIS SCIENCE ASSESSMENT (ISA)**

5th and 8th Grade

- ✓ **March 1, 2024 – April 30, 2024**

- **DYNAMIC LEARNING MAPS ASSESSMENT (DLM-AA)**

3rd – 8th Grade

- ✓ **March 13, 2024 - May 8, 2024**

THE CODE OF STUDENT CONDUCT

SENATE BILL 100 STUDENT DISCIPLINE/ RESTORATIVE JUSTICE

On August 24, 2015, Gov. Rauner signed SB 100, which won bipartisan support from state lawmakers. It was championed by students who argued that big changes would be necessary to drive down the use of exclusionary discipline and to reduce disproportionately high rates of discipline for students of color.

School officials shall limit the number and duration of expulsions and suspensions to the greatest extent practicable, and it is recommended that they use them only for legitimate educational purposes.

To ensure that students are not excluded from school unnecessarily, it is recommended that school officials consider forms of non-exclusionary discipline prior to using out-of-school suspensions or expulsions. 105 ILCS 5/10-22.6(b-5)

SIGNIFICANT CHANGES TO SUSPENSION AND EXPULSION PROCEDURES

- Out of School Suspensions for **Three** Days or Less May be used only if the student's continuing presence in school would pose: A threat to school safety; OR A disruption to other students' learning opportunities 105 ILCS5/10-22.6(b-15)
- Whether a student's continuing presence in school would pose a threat to school safety or a disruption to other students' learning opportunities "shall be determined on a case-by-case basis by the school board or its designee." 105 ILCS5/10-22.6(b-15)
- School officials "shall make all reasonable efforts to resolve such threats, address such disruptions, and minimize the length of suspensions to the greatest extent practicable." 105 ILCS5/10-22.6(b-15)

Out of School Suspensions for Four or More Days, Expulsions and Disciplinary Removals to Alternative Schools may be used only if: Other appropriate and available behavior and disciplinary interventions have been exhausted; AND the student's continuing presence in school would either: Pose a threat to the safety of other students, staff or members of the school community; OR substantially disrupt, impede or interfere with the operation of the school. 105 ILCS5/10-22.6(b-20)

- Whether a student's continuing presence in school would pose a "threat" or "substantial disruption" shall be determined on a case-by-case basis by school officials.

- The determination of whether "appropriate interventions" have been exhausted shall be made by school officials.
- School officials "shall make all reasonable efforts to resolve such threats...and minimize exclusion to the greatest extent practicable." 105 ILCS5/10-22.6(b-20)
- Services shall be determined by school authorities." 105 ILCS5/10-22.6(b-25) support services for students suspended for more than Four School Days and for Expelled Students.
- Students who are suspended out-of-school for longer than four school days must be provided appropriate and available support services during the period of their suspension. 105 ILCS5/10-22.6(b-25)
- A school district may refer students who are expelled to appropriate and available support services. 105 ILCS5/10-22.6(b-25)
- The determination of "appropriate and available support services shall be determined by school authorities." 105 ILCS5/10-22.6(b-25)

Requirements Related to Missed Assignments

- Students who are suspended from school must have the opportunity to make up work for equivalent academic credit.
- Students who are suspended from the school bus who do not have alternate transportation to school must have the opportunity to make up work for equivalent academic credit. It is the parent's responsibility to notify school officials that a student suspended from the bus does not have alternate transportation to school 105 ILCS5/10-22.6(b-30)

Specific Provisions

- School officials may not advise or encourage students to drop out voluntarily due to behavioral or academic difficulties. 105 ILCS5/10-22.6(h)
- A student may not be issued a monetary fine or fee as a disciplinary consequence, though this shall not preclude requiring a student to provide restitution for lost, stolen, or damaged property. 105 ILCS5/10-22.6(i)
- School boards may not institute "zero tolerance" discipline policies which require administrators to suspend or expel students for particular behaviors unless specifically required by federal or state law. 105 ILCS5/10-22.6(b-10)

Notices of Suspension and Written Decisions Related to Expulsions and Suspension Review Requests

- The notice of suspension must detail the specific act of gross misconduct; and for students suspended for four or more days, the notice should document whether appropriate and available support services will be provided during the period of suspension, or whether it was determined that there are no services available 105 ILCS5/10-22.6(b-25).
- If a student is expelled, the Board of Education's motion related to the recommendation for expulsion and the school administrator's letter to the parents/guardians confirming the decision of the Board of Education must: Detail the specific reasons as to why removing the student from the learning environment is in the best interest of the school; Include a rationale as to the specific duration of the expulsion; and document whether other behavioral and disciplinary interventions were attempted or whether it was determined that there were no other appropriate and available interventions. 105 ILCS5/10-22.6(b-20)

Professional Development Requirements

- Districts must make reasonable efforts to provide ongoing professional development on the adverse consequences of exclusion and justice system involvement, effective classroom management strategies, culturally responsive discipline and developmentally appropriate disciplinary methods that promote positive & healthy school climates to: *Teachers, Administrators, School board members, School Resource Officers; and Staff.* 105 ILCS5/10-22.6(c-5).

Memorandum of Understanding with Law Enforcement

- School districts are encouraged to create memoranda of understanding with local law enforcement agencies that clearly define law enforcement's role in schools. 105 ILCS5/10-20.14(b)

What is a behavioral or disciplinary intervention?

- Interventions are not defined in SB100. Interventions, per SB100, are determined by School Officials. These could include: instruction through general curriculum, health curriculum, character education, district-wide initiatives, school-wide behavior systems (e.g. PBIS) classroom management systems, individual conferences, parent conferences, tiered interventions, behavior support plans, restorative justice measures, removal of privileges, detentions, in-school suspensions, alternative education placements and finally, expulsions. (There is a push from the Federal Judicial System for the implementation of Restorative Justice Systems in public schools)

Are there some offenses for which districts can no longer suspend or expel?

- Under SB100, it is very unlikely that any of the following offenses would serve as the basis for an out-of-school suspension or expulsion: dress-code violations, being tardy to class, skipping class, not wearing a student ID, cheating and/or plagiarism, cell phone violations, and similar offenses which are not a threat to school safety or a disruption to other students' learning opportunities.

NEW RESTORATIVE JUSTICE MISSION STATEMENT

Dolton School District 149 teachers, staff and administrators will work together with students to create a school culture that promotes positive, trusting and caring relationships.

Restorative Justice Practices will be used in an effort to be proactive rather than reactive when handling adverse behavioral concerns. Dolton School District 149 will utilize the following:

- ✓ Multi-Tier System of Support, (MTSS)
- ✓ Peace Circles
- ✓ Chat Rooms
- ✓ PBIS
- ✓ Peer Mediation

Senate Bill 100 requires school officials to limit the number and duration of expulsions and suspensions to the greatest extent practicable. It is also recommended that the suspensions be used only for legitimate educational purposes. All disciplinary issues will be handled on a case-by-case basis. To ensure that students are not excluded from school unnecessarily, school officials will consider forms of non-exclusionary discipline prior to using out-of-school suspensions or expulsions, 105 ILCS 5/10-22.6(b-5).

Expectations of Students

- Maintain regular daily attendance.
- Be on time to all classes.
- Conduct yourself in a manner which reflects courtesy, decency, and sensitivity to the rights and needs of others.
- Respond courteously and promptly to reasonable requests of faculty and staff.
- Model pride in your school by keeping it clean.
- Follow school regulations and procedures. If you have questions, ask a staff member for assistance.
- Attempt to participate in a variety of school activities to enrich your own school experience.

- Refrain from loud noises or conversations which are disruptive to the educational environment of the building.
- Avoid running, it can be dangerous and is unacceptable.
- Leave the school building promptly at the end of the school day.
- No consumption of food or beverage in the halls.

A positive productive learning climate in the classroom and school community is maintained through student discipline and our PBIS Discipline Program. All District Schools have adopted Positive Behavioral Intervention Supports (PBIS). The reward system is the cornerstone of the discipline policy. Parents should receive notice of their child's positive behaviors as well as their need for improvement. Throughout the year class-wide and school-wide reward incentives and activities are planned. For the student who violates the rules, there is a consequence hierarchy ranging from teacher warnings, time outs, detentions and parent conferences. For serious offenses suspension and expulsion are possibilities. The District believes strongly that students should be in school learning.

Students are responsible for their behavior and choose by their actions either the rewards or the consequences. Parents are an important part of this plan and their cooperation in the implementation of the rewards and consequences are essential for its effectiveness.

In harmony with the concept of respecting the rights and the dignity of all staff, students, and parents in School District 149, any punishment of students is in good faith, fair, and reasonable. Excessive punishment, including corporal punishment, of any kind is prohibited; however, teachers have the right to use physical restraint to maintain order.

Individual teacher and building rules and consequences are based on the Code of Student Conduct adopted by the Board of Education on an annual basis. Parents are urged to review the Code of Student Conduct, outlined in this handbook, with their children.

The Code of Student Conduct is designed to give direction to the school community in the area of student conduct. This code is divided into two parts: (1) a statement defining the student's rights and responsibilities and (2) a statement defining the rules and regulations, which guide the student's conduct. The entire Code is presented with the hope that parents and students will become familiar with its provisions.

Board of Education policy clearly states that pupil behavior is expected to reflect respect and consideration toward the school staff, other pupils and school property. Board policy also states that any pupil whose conduct is disruptive to the rights of others or to the school itself will be subject to disciplinary action.

It is the purpose of the following Code of Student Conduct to set forth the rules and regulations for which all students have rights and responsibilities of compliance. Another purpose of the Code of Student Conduct is to define the rights of students.

STUDENT RIGHTS & RESPONSIBILITIES

Students as citizens of the United States are guaranteed certain individual rights and have corresponding individual responsibilities. Parents, teachers, and administrators have a responsibility, indeed a duty, to protect the rights of students while maintaining an educational atmosphere conducive to the teaching and learning process. The concept of balancing the rights of the individual with the rights of society is as valid in the educational community as in the larger community.

There are certain rights to which students are entitled:

- The privileges and rights of all students shall be guaranteed without regard to race, religion, sex, creed, handicap, or national origin.
- Students shall have the right to responsibly advocate change of any law, policy or regulation.
- Students may present complaints to teachers or administrators. Adequate opportunities shall be provided for students to submit written or verbal statements for consideration. At the Middle School, suggestion boxes will be used and a conflict resolution team will review complaints and statements.
- Students shall have the right to due process procedures in the matters of discipline.

There are certain responsibilities required of a citizen who is a student:

- To become informed of the rules and to reasonably follow rules and regulations established under Board of Education policy and implemented by school administrators, teachers and supervisors.
- To respect the rights and individuality of other students, all teachers, school administrators, other District employees and adults (i.e. parents, guardians, visitors, etc.).
- To maintain the best possible level of academic achievement.
- To refrain from libel, slanderous remarks, and obscenity in verbal, written and physical expression.
- To refrain from assault and/or battery (verbal or physical...) or threats of assault and/or battery on students, parents/guardians of students, teachers, or other School District personnel.
- To dress in school uniform and groom in a manner that meets reasonable standards of health, without causing distractions.
- To be punctual and present in the regular or assigned school program.
- To refrain from disobedience, misconduct, rules, infractions, or behavior that disrupts the educational process.
- To respect the reasonable exercise of authority by school administrators, teachers and supervisors in maintaining discipline in the school.

Disciplinary Actions

Disciplinary actions or consequences are developed as a means of coping with a problem. Please refer to your child's school-wide Discipline Plan. Students who exhibit behavior which is disruptive to the educational process create the need for consequences. Disciplinary actions have three purposes: to show disapproval of wrong, to stop further misbehavior, and to redirect the thinking and attitudes of the offender.

Disciplinary actions or consequences are normally, but not always, used in the following order: warnings, conferences, time-outs, withdrawal of school privileges, after school detention, suspension, and /or expulsion.

- ✓ **Warnings:** Warnings are non-judgmental and non-threatening reminders to the student that they are deviating from established norms.
- ✓ **Student Conferences:** Conferences are an opportunity for school staff members to apply the art of reason and persuasion as a means of fostering proper pupil behavior. A re-explanation of why a rule is necessary, combined with a clear understanding of the rule is sufficient to gain the compliance of the majority of students
- ✓ **Time-out:** A time-out is a relatively short period of time when the student is removed from an activity and separated from the rest of the class. It is a time for the student to regain control of himself without the stimulation of others.
- ✓ **Withdrawal of School Privileges:** Withdrawal of school privileges is the elimination of student participation in such activities as recess, assemblies, after-school programs or other similar events that occur at school.
- ✓ **After School Detention:** Students who are assigned after school detention will remain after school under the supervision of a teacher or administrator for the amount of time of the detention.
- ✓ **Suspension:** Restorative Justice Practices will be utilized for each individual student. Due process rights will be provided to all students.
- ✓ **Expulsion:** Restorative Justice Practices will be utilized for each individual student. Expulsion will be handled on a case by case basis within the guideline Senate Bill 100. Due process rights will be provided to all students.

Rules and Regulations

The following rules and regulations govern those types of conduct which interfere with the proper functioning of the educational process. This list is not all inclusive and does not limit the authority of school personnel to deal appropriately with other types of conduct.

School Tardiness or Absences

Students will be on time for and present on every regularly scheduled day of attendance provided in the official school calendar. **If a student is absent from school, he/she must provide a letter the next day that they return to school.**

Student absences will be excused ONLY for the following reasons:

- ✓ illness,
- ✓ death in the immediate family,
- ✓ family emergency,
- ✓ recognized religious holidays,
- ✓ family vacations (provided the school principal is given five school days' prior notice), and
- ✓ circumstances in which parents are concerned about the health and safety of the child.

Disruption of School

No student will interfere with another's right to use school facilities and to participate in education programs. Behavior which disrupts the school environment may include, but is not limited to, conduct which involves:

- ✓ disobedience
- ✓ profanity
- ✓ instigation
- ✓ provocation
- ✓ taunting
- ✓ "put-downs"
- ✓ violent or aggressive behavior
- ✓ gambling or playing games for money
- ✓ obscene gestures, acts, or literature
- ✓ potentially dangerous objects
- ✓ drug-related paraphernalia
- ✓ objects that interfere with the educational process. (i.e. electronic devices, headphones, except when specific permission is given, computer games, or other inappropriate items or transmitting devices).

Restorative Justice Action

- The disruptive behavior will be corrected by the person in charge of the school classroom or activity (teacher, supervisor, coach, etc.) with consequences as listed on the preceding page.
- A teacher may remove a student from the classroom for disruptive behavior that interferes with the effective implementation of the educational program. A disruptive student removed from the classroom will be immediately referred to the principal by the teacher.
- In the case of serious and/or repeated disruptive behavior, administrative actions may include severe consequences as deemed necessary.

School Uniforms/Dress and Appearance

Dress and appearance must not present problems of cleanliness, health, safety, or cause disruption. All students are required to wear uniforms daily. **Please make sure students come to school dressed in appropriate uniforms daily.**

Restorative Justice Action

- Teacher and/or administrator will hold a student conference.
- Teacher and/or administrator will contact parents.
- Restorative practices will be implemented if students continue to violate the mandatory uniform policy.

ATHLETIC PROGRAM PARTICIPATION

Every effort is made to include as many students as possible in the District 149 athletic programs. The rules and regulations for each program will be outlined to both students and parents/guardians prior to the inception of the program. Before a student can participate in any athletic event as an individual or team member, a physical exam is required. A physical record, completed after June 1st of the current school year by a license physician, must be on file at the school office prior to try outs.

Achievement and Eligibility for Athletic Program Participation

To participate in a season of athletics, students must meet the academic achievement requirements of the grading period prior to the start of the season. A cumulative grade point average of 2.0 must be maintained with no grade of F in any subject. Team player will have their status reviewed every two weeks by the administration and coach. If a student's academic achievement falls below the required standards, the student will be placed on academic probation for two weeks. During this first two-week probation period, the student may practice and may dress for athletic events/games, but may not participate in athletic events/games. The student must attend the coach-directed study table. These requirements are in effect until the day after the probation period ends. If a student fails to meet academic achievement requirements after the first two-week probation period, the student will be placed on a second two-week academic probation period. During this second-week probation period, the student may practice, but may not dress for or participate in athletic events/games. The student must attend the coach-directed study table. These requirements are in effect until the day after the probation period ends. If a student fails to meet academic achievement requirements after a second two-week probation period, he/she will be removed from the team.

Athletic Programs: Concussions and Head Injuries

Staff must inform student athletes and their parents/guardians about this policy in the Agreement to Participate or other written instrument that a student athlete and his or her parent/guardian must sign each school year before the student is allowed to participate in an athletic practice, interscholastic activity or competition. In addition, staff members must notify the parent/guardian of a student who exhibits symptoms consistent with that of a concussion. Pursuant to the Illinois' Youth Sports Concussion Safety, and the Illinois High School Association's Protocol for NFHS Concussion Playing Rules and its Return to Play Policy, the District policies and procedures include the following:

1. A Concussion Oversight Team develops procedures to manage concussions and head injuries suffered by students. These procedures include the following: A return-to-play protocol governing a student's return to interscholastic athletics practice or competition following a force of impact believed to have caused a concussion, whether or not the suspected concussion took place while the student was participating in an interscholastic activity. The Superintendent or designee shall supervise an athletic trainer or other person responsible for compliance with the return-to-play protocol. A return-to-learn protocol governing a student's return to the classroom following a force of impact believed to have caused a concussion, whether or not the suspected concussion took place while the student was participating in an interscholastic activity. The Superintendent or designee shall supervise the person responsible for compliance with the return-to-learn protocol.

2. A student shall be removed from an interscholastic athletic practice or competition immediately if any of the following individuals believes that the student sustained a concussion during the practice and/or competition: a coach, a physician, a game official, an athletic trainer, the student's parent/guardian, the student, or any other person deemed appropriate under the return-to-play protocol. This includes students exhibiting signs, symptoms, or behaviors consistent with a concussion (such as loss of consciousness, headache, dizziness, confusion, or balance problems).
3. A student who is removed from interscholastic athletic practice or competition due to a suspected concussion, whether or not the suspected concussion took place while the student was participating in an interscholastic activity, shall also be removed from any intramural activities and from the physical activity portion of the physical education course in which the student is enrolled and shall be allowed to return only after all statutory prerequisites are completed, including without limitation, the return-to-play and return-to-learn protocols developed by the Concussion Oversight Team. An athletic team coach or assistant coach may not authorize a student's return-to-play or return-to-learn.
4. A student athlete who has been removed from an interscholastic contest for a possible concussion or head injury may not return to that contest unless cleared to do so by a physician licensed to practice medicine in all its branches in Illinois or a certified athletic trainer.
5. If not cleared to return to that contest, a student athlete may not return to play or practice until the student athlete has provided his or her school with written clearance from a physician licensed to practice medicine in all its branches in Illinois or a certified athletic trainer working in conjunction with a physician licensed to practice medicine in all its branches in Illinois.

Gangs and Gang Related Activities

The presence of student involvement in gangs or gang-related activities on school grounds, while school is in session or at school-related events, including the display of gang symbols, or paraphernalia, is strictly prohibited. Gang colors, caps, and jewelry are examples of possible gang symbols in the past (left/right identifiers, language/verbal cues, etc.).

When weapons are involved or when a student has repeatedly exhibited behavior which indicates gang affiliation, involvement or membership, law enforcement personnel will be notified and a parent conference will be convened. When appropriate, arrests will be made and/or alternative placement arranged.

Restorative Justice Actions

- Administrator will take restorative justice action which may include any of the listed consequences.

Expected Behaviors Between Home and School

Students will observe all school rules and regulations on the way to school and on the way home and on the school grounds before and after school. Students must clear the school grounds in a reasonable period of time and go directly home or to a place agreed upon by parents.

Restorative Justice Actions

- Administrator will hold a conference with the student. Administrator will take disciplinary action which may include progressive stages of discipline. Please review your child's school-wide PBIS Plan.

Bus Conduct

A student will not disrupt or obstruct school bus transportation or damage private property which may be associated with school bus transportation.

Restorative Justice Actions

- The disruptive behavior will be corrected by the person in charge of the school activity (driver, supervisor, coach, etc.).
- In the case of serious and/or repeated disruptive behavior, such administrative action may include consequences based on the school's discipline plan. Suspension or revocation of bus privileges may be a consequence.

School Lockers and Desks

School lockers and desks are the property of the school. There are random locker and desk checks during the school year. Illegal, dangerous, or stolen items are prohibited from being stored in a student locker or desk. If there is reasonable suspicion that illegal, dangerous, or stolen items are located in a student locker or desk, the locker/desk may be searched without the knowledge, consent, or presence of the student. Personal property (i.e. purses, book bags, pockets, shoes, boots, etc.) may also be searched by appropriate authorized school officials or by law enforcement personnel without student consent.

Theft or Destruction of Property

No student will take, accept, keep, damage, or destroy school or private property. This includes buying or receiving stolen goods and keeping lost property without making a reasonable effort to find the real owner.

Restorative Justice Actions

- Teacher and/or administrator will hold a conference with the student and parent.

- School authorities will require teachers and administrators to use Restorative Practice Interventions.
- Administrator will take disciplinary action which may include consequences based on the school-wide restorative justice practices.

Possession or Use of Tobacco

Smoking, or possessing tobacco, or tobacco accessories by students is not permitted on school buses, in school buildings or on school grounds at any time. Accessories include such things as cigarette papers, pipes, and holders of smoking materials.

Restorative Justice Action

- Administrator will take disciplinary action which may include consequences based on the school-wide discipline plan.
- Parents/guardians will be advised and their cooperation sought.

Drug and Alcohol Abuse

The illicit sale, use, possession or distribution of drugs, look-alike drugs, marijuana, hashish, drug paraphernalia or alcoholic beverages is not permitted on school buses, in school buildings or on school grounds at any time. This includes all school sponsored and related activities as well as field trips and athletic and music trips, whether held before or after school, evenings, or weekends. Students who are under the influence shall be treated in the same manner as though they had drugs in their possession.

Restorative Justice Actions

- Parents shall be notified.
- The administrator shall take restorative practices which may result in serious consequences outlined in the school-wide discipline plan.
- The juvenile authorities shall be contacted.

Offenses for which pupils MAY be suspended or expelled include, but are not limited to:

- ✓ Possession of fire arms (guns or other projectiles...), and possession and/or use of weapons, or any object that can, or is intended to be used as a weapon.

- ✓ Violators are subject to arrest and prosecution under Illinois statutes. Weapons previously referred to include objects concealed or stored on a pupil, among a pupil's personal belongings, on another person, or among another person's belongings, on school buses, or any other form of transportation. Local law enforcement authorities will be utilized as needed when arrests are appropriate.
- ✓ Assault* and/or battery (*assault includes verbal attacks).
- ✓ Damage or destruction of school property through reckless or careless behavior or vandalism.
- ✓ Possession, sale, distribution (or intent to distribute), use, stashing, storing on pupil's person or among pupil's personal property, or in lockers, or any other location in the school building..., (allowing, causing, or coercing others to participate in such activity as heretofore described ...). ...DRUGS classified as illegal or "controlled substances" (i.e. marijuana, cocaine...) look-a-like drugs (drugs made of legal materials or chemical composites, but resembling illegal or controlled drugs) ...or possession, use, distribution or sale of any kind of drug paraphernalia.
- ✓ False fire alarm. Such action is illegal in that it constitutes reckless endangerment of oneself and others.
- ✓ Setting a fire. On school property, on school buses, or otherwise during any school sponsored or school-related function/activity (i.e., field trip, game...).
- ✓ Gambling, participating in games of chance with or for money or other things of value is strictly prohibited on school property, or during any school-related function, unless authorized by the Board of Education.

LOITERING AND TRESPASSING

Under no circumstances are students, former students or other non-students permitted to loiter or trespass inside or outside on District 149's property. This includes any place in the buildings, on the grounds, and on the parking lots. Violators are subject to arrest and prosecution. Playgrounds can be used by the public after school hours and otherwise when school is not in session.

- ✓ Any student found to be either directly or indirectly involved in planning or promulgation of a BOMB THREAT will be immediately suspended and may be expelled for up to one (1) year. School officials may also exercise their option to have student(s) arrested and prosecuted through the local law enforcement agency.
- ✓ Students who violate sexual harassment guidelines, as stated in the school district's internal policy manual (which is consistent with the Illinois State Code...) will receive appropriate punishment which may include arrest and prosecution through the local law enforcement agency.

- ✓ Threats (verbal, written, etc.) or perceived threats, direct or indirect (i.e. through 2nd party) or intimidation directed toward or intended for District 149 students, staff, support personnel or visitors will not be tolerated. Such behavior could result in maximum consequence approved by the District Board of Education and local law enforcement personnel will be notified, where warranted. Arrest and prosecution may result.

**** NOTE Given reasonable grounds for suspicion, school officials may search for and seize alcoholic beverages, drugs, look-alike drugs, marijuana, hashish or drug paraphernalia, tobacco and tobacco accessories brought onto buses or school property. Students are not allowed to bring in liquid drinks in containers. Student safety is our number one priority.***

CRIMINAL ACTS

Committing or taking part in any act defined as a crime by local, state, or federal law is prohibited in school buildings, on school property, at school-sponsored events, or when otherwise school related. Such actions may include, but are not limited to, the possession, stashing, or hiding, of weapons (authentic, simulated, fabricated or look-a-like (toys); the possession of marijuana, pills, or other medications excepting those medically prescribed, or alcoholic beverages; a physical attack on another person resulting in death or an injury requiring treatment by a physician.

Restorative Justice Action

- Student will be immediately escorted to the school office for action by principal or assistant principal.
- Principal or assistant principal may interrogate and/or search a student without notifying the parents or law enforcement authorities.
- Administrator will contact parents and/or law enforcement authorities.
- Administrator will take disciplinary action which may include consequences based on the school-wide discipline plan.
- Arrest and prosecution may take place.

Improper access or use of communications systems

Students will be subject to a variety of consequences if they are directly or indirectly involved in improperly accessing or using the telephone system - regular or mailbox message/homework hotline. All improper voice mail messages will be made available to local law enforcement officers for possible prosecution. Any student who influences, coerces, persuades another student to violate this will receive maximum consequences. Any threat (or perceived threat) to District personnel with the existing communications systems will be treated as a violation of both civil and criminal codes and appropriate actions will be taken. Violators will be subject to arrest and prosecution. **The District is not responsible for lost or stolen cell phones or any electronic devices not properly stored in student lockers. All cell phones for middle school students must be locked in school lockers.**

Use of Technology and Communication Equipment

Students using telecommunications equipment or services such as stand-alone or networked computers, Internet access, and other audio/video equipment are expected to treat and use this equipment and these services with respect and care. Access to this equipment and/or services is a privilege, not a right and acceptable standard of behavior and use must be in evidence at all times. Students who have been given personal access codes, passwords, or accounts for the use of this equipment must not share this access information with other students. A student must not use a code, password, or account of another student or staff member without the express written permission of the teacher in charge of the specific activity. Users who willfully access or attempt to access unauthorized areas, parts or services, shall be in direct violation of the Code of Student Conduct. Any student who willfully destroys or otherwise alters any electronic data used for classroom or administrative operation will be in violation of applicable laws and subject to prosecution. (See Criminal Acts) this equipment, and/or use of service(s) shall be considered an extension of the school environment and all aspects of the Code of Student Conduct shall apply to this equipment and/or service in like manner.

Electronic media storage will be treated like a school locker or desk and is subject to inspection by school officials. Network administrators, school administrators, and teachers may review files, disks, tapes or other media in order to maintain electronic media integrity and ensure that students are using the system responsibly. Network users should not expect information stored on the system(s) to be private or maintained indefinitely. Users should remember that communications on any network are often public in nature and the District cannot guarantee that any information placed on the network will remain private.

Restorative Justice Actions

- The inappropriate behavior will be corrected by the person in charge of the activity using the equipment or services with consequences based on the school-wide discipline plan.
- A teacher may remove a student from the classroom for inappropriate use of technology or communication equipment. A student removed for this reason will be immediately referred to the principal by the teacher.
- In the case of serious and/or repeated inappropriate use of technology or communication equipment, administrative actions may include consequences based on the School Wide Restorative Justice Practices.

NOTE: Students on suspension, awaiting expulsion hearing or who have received alternative placement are not to enter District 149 properties, without permission of the building administrator or a District 149 administrator. Violators risk further penalties or disciplinary actions including arrest.

BULLYING PREVENTION

It is the policy of District 149 to provide an educational environment free from bullying, hazing, harassment, and cyberbullying. The plan will be evaluated annually. The School District is committed to protecting its students from any form of physical, verbal, or mental abuse. All Dolton School District 149 Principals and Staff shall work to develop safe, supportive school environments that prevent bullying through:

- Developing supportive school climate strategies, including clear expectations and shared agreements to guide interactions between students, and between staff and students.
- Teaching all students social and emotional skills and establishing classroom and school-wide practices that promote relationship building, including teaching all school stakeholders to speak out when they see or hear bullying, degrading language, and bias or prejudice treatment against students.
- Ensuring all students, staff, and stakeholders know what their school plan is regarding bullying and harassment.
- Ensuring all students and staff understand that reprisal or retaliation against any person who reports an act of bullying is prohibited and the consequences and appropriate remedial actions for a person who engages in reprisal or retaliation.

Responsibilities of Dolton School District 149

All DSD 149 employees and contractors, including security officers, lunchroom staff and bus drivers, who witness incidents of bullying or school violence or who possess reliable information that would lead a reasonable person to suspect that a person is a target of bullying, must:

1. Intervene immediately in a matter that is appropriate to the concern and ensures the safety of all people involved.
2. Report the incident of bullying or retaliation to the Principal/Designee as soon as practicable, but within 24 hours.
3. Cooperate fully in any investigation of the incident and in implementing any safety plan established by the Principal/Designee.

Responsibilities of Students, Parents, and Guardians

No student who witnesses bullying may stand by or participate in the bullying, but must notify an adult at school and an adult at home as quickly as practicable. Any parent or guardian who witnesses or is notified of bullying has an obligation to advise the Principal/Designee as quickly as practicable. Reports can be made to any Dolton School District 149, Principal/Designee, by calling the DSD 149 Principal's Office or District office at (708) 868-8300. Anonymous reports will be accepted by the Principal/Designee. No disciplinary action will be taken on the sole basis of an anonymous report.

Steps for Investigating Bullying Reports

The Principal or their Designee will provide immediate support to any targeted student(s) to ensure safety. If there are overt or implied risks of safety, follow the steps in the Code of Student Conduct Manual, including immediately notifying the Title IX Compliant Manager. Alleged behaviors targeted at sex, gender, sexual orientation, gender identity, or gender expression should be reported immediately to the Title IX Coordinator, Mr. John Johnson for assistance and support at (708) 868-9470 or johnsonjd@sd149.org and Compliant Manager, Dr. Kenneth Scott at (708) 868-8300 or scottk@sd149.org.

- 1) Notify parents/guardians of all involved students. Within one school day of receipt of a bullying report, the Principal/Designee shall report to the parent/legal guardian of all involved students, via telephone, personal conference and/or in writing, the occurrence of any alleged incident of bullying, and shall document these notifications in the District student information system (Skyward). Notifications should be made privately to students directly involved and their parent/legal guardian.

- 2) Additionally, when incidents have a larger impact on the school community, the Principal/Designee shall provide clear communication to students, staff and parents to reinforce school-wide expectations and a climate of respect and inclusion.
- 3) Document all allegations of bullying. Within two school days of receiving a report of bullying, the Principal/Designee will document the allegation in the District student information system (Skyward) as a general incident report and document all notifications made.
- 4) Investigate. The Principal and/or a Designee, who is knowledgeable about bullying prevention and intervention, shall perform the investigation. For guidance, contact the Compliant Manager, Dr. Kenneth Scott at (708) 868-8300 or scottk@sd149.org. Investigation of reported bullying shall be initiated within 5 school days of receipt of a report, documented within the incident report in the District student information system (Skyward), and completed within 10 school days, unless the Principal grants in writing an additional 5-day extension due to extenuating circumstances. The Principal/Designee shall document the extension in the investigation report and shall notify the parties involved.

The investigation shall include:

- Identifying all involved parties, including the student(s) alleged to have engaged in the bullying behaviors, alleged target(s) and bystander(s), as well as any adult who witnessed the incident or may have reliable information about it.
- Conducting an individual interview in a private setting with all involved parties. The alleged target should never be interviewed in public or with the student(s) alleged to have engaged in bullying.
- Assessing the individual and school-wide effects of the incident relating to safety.
- Making a determination whether allegations of bullying are substantiated or not and document determination. The Principal/Designee shall consider whether the four elements of the bullying definition are met, or if all four elements of bullying are not present, whether the behavior qualifies as another inappropriate behavior listed in the Code of Student Conduct. When the investigation is complete, the Principal/Designee shall ensure the investigation and findings (whether the report of bullying is substantiated or not substantiated) are documented in the District student information system (Skyward). If the investigation determines a student engaged in bullying behaviors and/or other inappropriate behaviors listed in the Code of Student Conduct, the Principal/Designee shall prepare a Misconduct Report.

- Notify all involved parties of the outcome of the investigation. Within one day of making a determination, the Principal/Designee shall notify, in writing, the parents/legal guardian of all students involved of the outcome of the investigation. Parents/legal guardians of the students who are parties to the investigation may request a personal conference with the Principal/Designee to discuss the investigation, the findings of the investigation, the actions taken to address the reported incident of bullying, and any resources available in or outside the school to help the students address the underlying reasons for the bullying. When communicating incidents of bullying to the targeted student's parent/guardian, the Principal/Designee should consider whether the student may want to keep certain information confidential. If the investigation determines a student engaged in bullying behaviors, the Principal/Designee shall provide the Misconduct Report to all parents/legal guardians, notifying them that the Code of Student Conduct was followed. They may not advise them of specific consequences imposed, as that would violate the confidentiality of school-record information required by law.

Appeal Process

Any party who is not satisfied with the outcome of the investigation may appeal to the Compliant Manager, Dr. Kenneth Scott at (708) 868-8300 or scottk@sd149.org within 15 calendar days of notification of the Principal's decision. The compliant manager shall render a final determination in accordance with the timeline and procedures set out in the anti-bullying appeal guidelines established. Principals or their Designees may further their investigation, reconsider the consequence(s), direct the imposition of other consequence(s), or deny the appeal.

The Compliant Manager shall notify the party requesting the appeal and the Principal that its decision is final and shall document that notification in the Incident Report in the District student information system (Skyward). Consequences for Dolton School District 149 Employees and Contractors when it is determined that they were aware that bullying and discriminatory behavior was taking place but failed to report it, those employees/contractors will be considered to have violated this Policy.

The Compliant Manager shall make recommendations for the Board to consider employee discipline for such violations, referring to any applicable collective bargaining agreement. Remedies for offending contractors should be imposed according to their Board contracts.

Notice and Dissemination of Requirements Principals shall follow the requirements established by the Bullying Policy on the District's/school's website, in the school building as well as disseminating and presenting this Policy to school staff as part of pre-school-year professional development.

Training and Professional Development Staff Professional development will be offered to build the skills of all DSD 149 employees, contractors and volunteers to implement this Policy.

The content of such professional development shall include, but not be limited to:

1. Developmentally appropriate incidents of bullying and discriminatory behavior to intervene immediately and effectively to stop them;
2. Information about the complex interaction and power differential that can take place between and among a perpetrator, target, and witness to the bullying and bias-based and discriminatory behavior;
3. Research findings on bullying, including information about specific categories of students who have been shown to be particularly at risk, and any specific interventions that may be particularly effective for addressing bullying behavior; and
4. Information about Internet safety issues as they relate to cyberbullying.

DEFINITIONS

Bullying: Bullying is defined to include, but is not limited to, any aggressive or negative gesture, electronic communication, or written, verbal or physical act that places another student in reasonable fear of harm to his or her person or property, or that has the effect of insulting or demeaning any student in such a way as to disrupt or interfere with the school's educational mission or the education of any student. Bullying most often occurs when a student asserts physical or psychological power over, or is cruel to another student perceived to be weaker. Such behavior may include but is not limited to: pushing, hitting, threatening, name calling or other electronic, written, physical or verbal conduct of a belittling or browbeating nature.

Hazing: Hazing is any act that subjects a student to electronic, written, physical, or verbal harassment, mental or physical discomfort, intimidation, embarrassment, ridicule, or demeaning activity committed by an individual student or group of students for the purpose of initiation, maintaining membership, or holding office in any organization, club, or athletic team.

Harassment: Harassment includes any unwelcome electronic, written, physical, or verbal conduct, contact or communication that is motivated by or related to individual characteristics such as race, color, national origin,

gender, economic status, disability, religion, religious affiliation or sexual orientation and that creates an intimidating, hostile or offensive educational environment. Although harassment that creates a hostile environment may take many different forms, some examples include name calling and other derogatory comments, jokes, gestures or looks, posting or distribution of derogatory pictures, notes or graffiti, blocking, pushing, hitting or other forms of physical aggression. Where harassment is sexual, it may also include such conduct as persistent unwelcome attempts to interact with someone, spreading of rumors, aggressive physical contact such as kissing, touching or pulling at clothes in a sexual way.

Sexual Harassment: Sexual Harassment also includes unwelcome sexual advances or requests for sexual favors when such conduct is made either explicitly or implicitly a term or condition of the receipt of educational or other school related benefits, or such conduct by an individual is used as the basis for educational or other school related decisions affecting that individual.

CYBER BULLYING

In an effort to encourage students to come forward and report incidents of bullying, harassment or intimidation, ***Dolton School District 149 has implemented the Cyberbullying/Bullying Quick Tip notification system through the School Messenger App.*** Whether it is physical or verbal, whether it is done online or offline, or whether it happens before, during, or after school, one thing is for certain: bullying is wrong. The purpose of this program is to create an anonymous, two-way means for students, parents, guardians and others to report incidents of bullying, harassment, intimidation and more.

Cyberbullying: Cyberbullying is a subset of bullying, hazing, and harassment. For purposes of this Policy, cyberbullying is defined as the use of email, instant messaging, chat rooms, pagers, cell phones, or other forms of information technology to deliberately bully, haze, harass, threaten, or intimidate someone. Cyberbullying can include, but is not limited to, such acts as making threats, provocative insults, racial or ethnic slurs, sexting or demeaning remarks about one's sexual orientation.

Sexting: Sexting is electronically distributing or disseminating any material that depicts another minor nude or engaged in any sexual or lewd conduct. Electronic transfers include transfers via computer or any other electronic communication device, including cellular phones. It is a violation of Illinois Law for a minor under the age of 18 to electronically distribute or disseminate any material that depicts another minor nude or engaged in any sexual or lewd conduct. The District prohibits students from imaging in sexting, including possessing sexually explicit photographs or images on any electronic device regardless of whether the depiction violates State Law. Any

cellular phone or other electronic device may be searched upon reasonable suspicion of sexting. All students involved in sexting may be disciplined. In all cases where sexting is suspected, school administrators will contact the police.

Threats: A statement of an intention to inflict pain, injury, damage, or other hostile action upon an individual or institution.

COMPLAINTS

A student who feels he or she has been bullied, hazed, harassed, or cyberbullied should inform a School District staff member. All school employees are required to report alleged violations of this policy to the Principal or his/her designee. All other members of the school community, including students, parents/legal guardians, volunteers and visitors, are encouraged to report any act that may be a violation of this Policy. There are no express time limits for initiating complaints under this Board policy. However, every effort should be made to bring complaints to the attention of appropriate authorities as soon as possible while memories are fresh and witnesses continue to be available. Complaints will be investigated. If it is determined that a violation has occurred, prompt corrective action will be taken.

During the investigation, confidentiality will be maintained to the utmost extent possible. Complainants will be offered counseling and other assistance when appropriate and will be informed of the results of any investigation. After all building level interventions have been exhausted, students or parents of students may file a formal written complaint of discrimination or harassment with the Associate Superintendent's Office/Complaint Manager, Dr. Kenneth Scott at scottk@sd149.org.

GRIEVANCE PROCEDURE ALLEGED DISCRIMINATION

Any person who desires to file a complaint alleging discrimination or any other violation of federal law, state law, or Board of Education Policy, may do so by stating in writing the following information (to the extent applicable):

- The name, address and telephone number of the complainant.
- The name or names of the agents of the Board of Education allegedly committing the violation.
- The date, time, and place of the violation.
- The names, addresses and telephone numbers of all witnesses to the violation.
- A description of the conduct.

- A description of the law, regulation, or policy claimed to have been violated to the extent that it can be identified by the complainant.

The above written complaint should be presented or delivered to the Superintendent of Schools at 292 Torrence Avenue, Calumet City. The Superintendent's Designee, Dr. Kenneth Scott, Associate Superintendent will investigate the action described in the complaint and will establish a date for a hearing on the complaint. Written notice of the date of the hearing will be sent to the complainant seven days prior to the hearing date. The hearing will be informal in nature for the purpose of permitting the complainants to present a full statement of the conduct complained of and to present witnesses in his or her behalf. At a later date, the Superintendent's Designee, Dr. Kenneth Scott, Associate Superintendent will issue a written report containing her findings and any action to be taken.

If the complainant is dissatisfied with the results of the hearing, he or she may file a written appeal to the Board of Education. The Board of Education will set a date for hearing the appeal, hold an appeal hearing, and announce its decision at a later date.

In the case of complaints alleging violations of the School District Sex Equity Policy, a complainant who is dissatisfied with the decision of the Board of Education will have the right to appeal the decision to the Superintendent of the Cook County Service Region, if in existence, and, thereafter, to the State Superintendent of Education.

HOMEWORK

The purpose of homework is to help students develop good study habits, reinforce what was learned in class, and to apply skills or concepts already learned. The teacher is responsible for deciding when, what, and how much homework is given.

Parents should establish homework as a top priority for their children and make sure that it is completed in a quiet environment. Children should be expected to do homework and should be provided with positive support when it is completed. Parents are urged to contact the classroom teacher if their child is having any problems with homework or if the homework frequently exceeds the suggested time limits.

Primary20-25 minutes
Intermediate.....35-40 minutes
Middle School.....45-60 minutes

On nights when the student has no specifically assigned homework the child can be expected to read a book or material of choice. Parents are encouraged to use this time to read to their children or to listen to them read. Students can also practice their skills in reading and math using the On-line STRIDE Academy Program. See your child's Principal for more information.

MCKINNEY VENTO ACT

The District does not charge tuition or refuse enrollment for those students who fall under the McKinney Vento Act. Provisions for transportation are provided for homeless children. **The District Homeless Liaison and Foster Care Liaison is Theresa Smith, Department of Specialized Services. Please contact her office at (708) 868-8300.**

STUDENT INSURANCE

The school district does provide basic insurance coverage for students injured at school. If your child is hurt at school, contact your child's building Principal. **Student athletes will also be covered under a special insurance.**

MEDICAID

Medicaid reimbursement is a source of Federal Funds approved by Congress to help school districts to maintain and improve Special Education services. Therapy and diagnostic services provided to your child are partially reimbursable through this program. Unless a parent objects in writing, School District 149 will claim Medicaid reimbursement for services provided. These claims will have no impact on a parent's ability to receive Medicaid funding either now or anytime in the future. If you do not object to this release of information related to Medicaid claims for your child, do nothing. If you have any questions about the District's Medicaid claims, please feel free to contact Ms. Carmen Canales, at 708- 868- 8300. Current Medicaid identification cards, with a District 149 address, may be used to prove the need to waive book rental (registration) fees.

MEDICATION IN SCHOOL

Students are not permitted to bring medications (including aspirin and all other nonprescription medications as well as prescription medications) to school. If students are in critical need of medication, parents should make arrangements to administer such medication at home, before or after school hours. Teachers and other school personnel cannot be required to administer medications to students. Exceptions will be made: upon written request from a physician and the parents; in the case of special education children according to their IEP, or if a student demonstrates a sufficient need for the medication during the school day and must take medication in order to attend school. If parents are

unable to come to school to administer this medication, then medications brought to school will be properly stored in a locked cabinet by all school nurses.

If medications must be brought to school, they must be in the original package or an appropriately labeled container. Parents must submit a written request for the medication to be given during school hours and must include an emergency telephone number where they can be reached. It is the parent/guardian's responsibility to assure that the licensed prescriber order, written request, and medication are brought to the school. The parent/guardian will be responsible at the end of the treatment regime for removing from the school any unused medication which was prescribed for their child. If the parent/guardian does not pick up the medication by the end of the school year, the school nurse will dispose of the medication. These guidelines are reviewed annually by a committee composed of parents, teachers, school nurses and administrators.

NURSE

Dolton SD 149 has a full-time Registered Nurse on duty. The nurse requests that parents keep children who are ill at home and keep children at home for at least 24 hours after a fever (temperature of 100 or above) Students should not be sent to school for the nurse to recommend treatment. Students may be excluded from school if they: (A) show symptoms of illness: nausea or vomiting, diarrhea, bad cough, severe pain, fainting and/or dizziness, 30 fever, high temperature, swelling of the neck, sores, impetigo, a rash, etc.; (B) have head or body lice; (C) have eye infections, except sties; (D) contacts of the following diseases: diphtheria, poliomyelitis, smallpox, meningitis, typhoid, and whooping cough (unless they have had whooping cough or have been immunized against it).

The nurse does not treat illnesses nor prescribe medication. The child's physician should be utilized for these purposes. The school nurse keeps a cumulative health record for each child. Tests for hearing and vision defects are conducted in certain grades each year. Physical conditions needing attention will be reported to parents. The nurse is also on call for giving first aid in case of injuries and for checking students who become ill during the school day. If necessary, the nurse will contact parents of children who need to go home because of illness or injury.

NON-DISCRIMINATION POLICY

It is the Policy of School District 149 not to discriminate on the basis of race, religion, color, sex, national origin or handicap in its educational program, activities or employment practices as required by Title IX of the 1972 Education Amendments Act, Title VI of the Civil Rights Act, Section 504 of the Rehabilitation Act of 1973, Public Law 94-142 as amended by I.D.E.A. of 1995, the Handicapped Act, and Public Law 101-476 Individuals with Disabilities Education Act.

Complaints alleging a violation of any federal law dealing with discrimination should be directed to the District Superintendent.

PERMISSION TO LEAVE SCHOOL

It is essential that school personnel know where each student is during the school day. Students are not permitted to leave the school grounds without permission from the principal or designee, and they will be released only to a parent or designated responsible adult listed on the emergency card. The parent or responsible adult must sign a log book in the school office when taking the child out of school.

NEW UPDATED PHYSICALS AND IMMUNIZATION INFORMATION

All children are required by Illinois law to submit proof of having had a physical examination and required immunizations by a licensed physician prior to entrance into Pre-Kindergarten, Kindergarten, and 6th grade and, irrespective of grade, before entrance into school, if the child has not been previously examined.

Children entering 6th grade must provide written documentation of having received (3) doses of Hepatitis B vaccine, other proof of immunity, a religious objection or medical objection. Pupils who do not furnish a report of the required physical examination and immunizations or who have not filed a statement of objection shall be excluded from attendance at school after October 14th. **Effective August 1, 2017 all students entering, advancing or transferring into 6th, 7th, 8th, grade will be required to show proof of receipt of one dose of Tdap vaccine (combined tetanus, diphtheria, acellular pertussis) vaccine regardless of the interval since DTP, DT, or Td Dose.**

A Diabetes screening is mandatory as a part of the physical health examination.

For entry into **Kindergarten, 2nd and 6th grades** for the **2023-2024 school year** a **Dental examination is MANDATORY!** Physical and dental examination forms are available in the school office. Parents or guardians who object to health examinations and/or immunizations for their child on religious grounds must complete a written statement of objection, detailing the objection and present it to the principal.

Vision Examination- Public Act 95-671, effective January 1, 2008 requires that all children enrolling in Kindergarten in public, private or parochial school shall have an eye examination. Each child is to present proof of having been examined by a licensed physician or licensed optometrist within the previous year before October 15th of every school year.

RESIDENCY REQUIREMENTS

- Only those school age children who are residents of School District 149 are eligible to attend District 149's schools. A student resident is defined as:
- One who is living with a natural parent or parent by legal adoption who actually resides in School District 149;

- One whose parents are deceased or whose parents' parental rights have been terminated and who is living with a resident court-appointed guardian or an adult in loco parentis.
- A parent/guardian will be permitted to register a child only after proof of residence has been established. Proof of residency may be established by current utility bills, in conjunction with leases or house ownership papers. If at any time this proof of residence is found to be fraudulent, the child will be dropped from the attendance roll and tuition will be charged for the period of enrollment. The Illinois School Code indicates that it is the duty of school districts to charge this tuition of up to 110% of the per capita cost of maintaining the schools of the district the preceding school year. Parents are responsible for notifying school personnel of any factor affecting residency requirements.
- A special education student who changes residence to one outside of the boundaries of School District 149 becomes the immediate responsibility of the child's new home school district.

SEX EDUCATION

Instruction on human reproduction, sexuality, and physiology is to be taught in the District's health education program for students in grades five through eight. Included in the School District 149 Middle School program is comprehensive instruction on the prevention, transmission, and spread of AIDS.

No pupil shall be required to take or participate in any class or course in comprehensive AIDS and/or sex education if parents or guardians submit written objection to such instruction. Such notification must be submitted to a building administrator at the beginning of each school year.

Parents have the opportunity to examine the instructional materials to be used in such a class and may do so by contacting the principal of their child's school.

TEEN DATING VIOLENCE PROHIBITED

Teen dating violence on school property, at school sponsored activities, and in vehicles used for school-provided transportation is prohibited. Anyone with information about an incident of teen dating violence should report it immediately to any school staff member.

SEX EQUITY

School District 149 does not discriminate on the basis of sex in the provision of programs, activities, services, or benefits. Members of each sex shall have equal access to educational and extracurricular programs and activities. If you have questions about sex equity please contact our Title IX Coordinator, Mr. John Johnson (708) 868-9470.

Sexual intimidation and harassment of students by other students or employees is unacceptable in District 149. Teachers and/or administrators shall take prompt, corrective action when they become aware of sexual intimidation or harassment. Students or parents of students who feel that intimidation or harassment is taking place should contact the Building Principal.

SPECIAL EDUCATION PROGRAMS AND SERVICES

Special education instructional programs are provided within the district for learning disabled, educable mentally handicapped, and behavior disordered students as well as for early childhood special education students. Resource programs are provided in each building. Related special education services are provided by certified speech therapists, social workers, school psychologists and others.

Programs and services are available through the special education cooperative ECHO (Exceptional Children Have Opportunities) for severely impaired students. Other services are available through inter-district programs for the low incidence handicapped such as the blind, deaf, autistic, orthopedically impaired, and severely language delayed student. A parent-infant program is available for handicapped children from birth through three years of age.

Additional information regarding the district's special education programs, services, and procedures can be found in an extended section on Special Education later in this booklet. Parents who wish to inquire about special education programs, services, procedures, or parental rights should contact the Principal of their attendance area.

SOCIAL WORKERS AND COUNSELORS

Certified and licensed Social Workers and Counselors are on hand to support students in need of short term and long-term counseling and crisis intervention. Students are seen individually and in groups as deemed appropriate. Social workers abide by a strict code of ethics that mandates confidentiality. The District social workers also function as liaisons between school, home, and community resources. This year Social Workers and Counselors will utilize peace circles and chat rooms to address student conflict and utilize restorative interventions to resolve matters.

ABUSED AND NEGLECTED CHILD REPORTING

According to the Abused and Neglected Child Reporting Act (Ill. Rev. Stat. 1985, ch.23, pars. 2051 et seq.) every staff member must make a report to the Child Abuse Hotline if he/she has reasonable cause to believe that a child may be abused or neglected.

STUDENT RECORDS

Student records are of two types: temporary records and permanent records. Temporary records consist of such information as family background information, intelligence and aptitude test scores, achievement test scores, and special education records.

- Temporary records are destroyed between four and five years from the date the child leaves the school district. Upon written request, custody of temporary records will be transferred to a parent or eligible student after the four years.
- Permanent records include identifying information, academic grades, attendance records, health/accident records and the record of the release of such records. Permanent records are retained indefinitely by the school district.

School records may be examined by parents in the presence of the building Principal. If a parent desires to challenge an entry in a student education record on the basis of accuracy, relevance or propriety, the parent may file a request for a hearing with the principal. After receiving the request, the Principal will conduct an informal conference with the parents. If this informal conference does not resolve the challenge, the parent may request a formal hearing with the Superintendent. If this formal hearing does not resolve the challenge, the parent may take an appeal to the Superintendent of the Educational Service Region of Cook County.

When a student transfers or graduates from District 149 the student temporary records will be sent upon the request of the receiving district. Parents are notified of this but do not have to give permission. Special Education records are not sent to other districts without the written permission of the parent or guardian. Parents may request copies of any information in their child's file. A nominal fee for this service may be charged.

Additional information regarding the District's student record policy can be found in an extended section on Student Records at the end of this booklet. Copies of the Illinois School Records Act can be obtained at the Administrative Service Center.

SUBSTANCE ABUSE PREVENTION

Substance abuse prevention programs for students are provided in District 149. Such programs include the dangers of smoking and drug and alcohol abuse. The health education curriculum provides appropriate activities at each grade level. Substance abuse educational programs are provided through health classes and special programs. Students are taught the dangers of substance abuse and the importance of making appropriate choices. These programs are supported in part by the Drug Free Schools and Communities Act of 1986. District 149 students attend school assemblies when offered by the Dolton, Calumet City Police Departments, and the Cook County Sheriff's Office.

SUPERVISION OF STUDENTS

Supervision of students on the playground by school personnel begins 10 minutes before the beginning of the student's school day. For this reason, parents are not to allow their children to arrive at school before this time.

Students line up to enter the school before the beginning of the school day with classes starting at the scheduled time. Students will be considered tardy if they are not in class at this time. Students who are not in attendance for five hours of instruction are considered to be absent for a full day. Students who are not in attendance for two- and one-half hours of instruction are considered to be absent for a half day.

Children are urged to return home immediately after school to ensure their safety from predators and criminals roaming the streets. Parents who are picking up children at the end of the day must be at school at dismissal time. Supervision of students continues for ten minutes after dismissal time and then ceases except for students taking part in official after school activities. Parents are asked to discuss with their children the safest route to and from school and to remind them not to accept rides from strangers.

TRANSFER OF STUDENTS

When a family is moving out of District 149, school office personnel should be contacted as soon as possible so that a transfer form can be prepared and student projects, materials, and books can be properly collected. On the last day of the child's attendance, a parent or guardian should come to the school office to obtain the transfer form to take to the new school. Schools in Illinois will not accept transfer students without the State Transfer Form.

Temporary school records will be sent to the receiving school upon receipt of a written request. Temporary records not requested on a student will be held between four and five years before being destroyed by the District as required by the Illinois School Student Records Act.

GRIEVANCE PROCEDURE POLICY

Grievance Procedure: Alleged Discrimination

(The following policy, which details procedures to be followed in cases of alleged discrimination, is intended to comply with all forms of anti-discrimination guidelines, including those adopted by the federal government which prohibits educational discrimination against the handicapped.)

Pursuant to the provisions of the Regulations adopted and to be adopted by the Department of Health, Education and Welfare for the purpose of implementing various federal statutes relating to civil rights, the Superintendent of Schools is appointed the designee of the Board of Education for the purpose of complying

with and carrying out the Board of Education's responsibilities under such laws and regulations including any investigation of complaints communicated to the Board of Education alleging its noncompliance therewith or alleging any actions which are prohibited by federal law or regulation.

Any person who desires to file a complaint alleging a violation of any federal law dealing with discrimination in connection with the operation of public schools, or regulation hereunder, or any written policy of the Board of Education relating there to shall state the complaint in writing and include therein the following information (to the extent applicable):

- The name, address and telephone number of the complainant.
- The name or names of the agents of the Board of Education allegedly committing the violation.
- The date, time and place of the violation.
- The names, addresses and telephone numbers of all witnesses to the violation.
- A description of the conduct complained of.
- A description of the law, regulation or policy claimed to have been violated to the extent that it can be identified by the complainant.

Promptly after the receipt of a written complaint charging a violation covered by this Policy, the Superintendent shall investigate the action described in the complaint. The Superintendent shall also establish a date for a hearing on the complaint, which shall be not more than 28 days after filing of the complaint (provided that the period of time during the summer recess shall not be counted for the purpose of calculating said 28-day period. Written notice of the date of the hearing shall be sent to the complainant not less than seven days prior to the hearing date.

SPECIAL EDUCATION

House Bill 3586, signed by Governor Pritzker on August 23rd. This bill amends the IL School Code and is effective immediately. HB 3586 indicates that we must provide the following:

All evaluations and collected data to parents/guardians three school days before eligibility and IEP meeting.

We must maintain and make available at the annual review the child's IEP and upon request related service logs that record the type of related services administered under the child's IEP and minutes of related service that have been administered.

According to state and federal legislation, School District 149 is responsible for actively seeking out and identifying all exceptional children in the District who are between the ages of 3 and 15. **Please note the Department of Health and Family Services (HFS) have updated new requirements for students regarding Speech-Language Services. “A referral by a physician or other licensed practitioner of the healing arts within the scope of his or her practice under law is required for speech-language services. The referral must be updated annually and maintained in the student’s health record.”** To do this, certain procedures and programs have been developed. These include:

- Annual screenings of children between the ages of 3 and 5 years old are held to identify those who may need special education.
- Hearing and vision screenings are conducted at regular intervals during the child's school career.
- Speech and language screenings are conducted for each child upon initial enrollment and at intervals during the child's school career. A licensed physician must sign a referral for a student needing speech- language services.
- An annual screening of all students, not in special education, is completed by teachers.
- Parents, district personnel, community service agency personnel, the child or persons having primary care and custody of a child may make a referral for a comprehensive case study evaluation to determine eligibility for special education services. The Principal of the attendance area where the child resides is designated as the receiver of case study evaluation referrals. This case study evaluation will include (but need not be limited to):
 - An interview with the child.
 - Consultation with the child's parents.
 - A social developmental study, including an assessment of the child's adaptive behavior and cultural background.
 - A report regarding the child's medical history and current health status.
 - A vision and hearing screening, completed at the time of the evaluation.
 - A review of the child's academic history and current educational functioning.
 - An educational evaluation of the child's learning processes and level of educational achievement.
 - An assessment of the child's learning environment.

- Specialized evaluations specific to the nature of the child's potential deficit areas.
- At the end of the evaluation a multidisciplinary conference, which includes the parents or guardians, will meet to determine the child's eligibility and may develop an Individual Education Program that will lead to recommending any services or programs that will be needed.
- Parents or district personnel may request a case study evaluation to determine a student's eligibility for home and hospital services. These services consist of instructional programs for the child in a hospital or at home when there is a need for such service for at least two weeks but less than six months. This case study evaluation will include (but need not be limited to):
- Evaluation of the physical or health impairment by a licensed medical physician, obtained at parent's expense or through community resources.
- Estimation by the physician of the time the child will require homebound services.
- A review of the child's current educational status and academic needs.
- Upon completion of a homebound services case study evaluation, the local district superintendent or his/her designee shall determine the child's eligibility for homebound services and recommend an appropriate placement.
- Parents or District personnel may request a speech and language case study evaluation to determine eligibility for children whose problems seem to be limited to the areas of speech and language. This case study evaluation shall include (but need not be limited to):
- A hearing screening completed at the time of the evaluation or within the previous six months.
- A review of the child's medical history and current health status.
- A review of the child's academic history and current educational functioning.
- An assessment of the child's speech and language by a certified speech and language clinician.
- An interview with the child.
- Upon completion of a speech and language case study evaluation, a multidisciplinary conference will be held to determine the child's eligibility and make appropriate recommendations.

- A student's special education program (Individualized Education Program) shall be reviewed at least once annually. At that review the student's current level of performance shall be discussed and goals and objectives written for the following year. At the annual individualized education plan review, the District Behavioral Intervention Policies and Procedures shall be explained, a copy of local behavioral policies shall be furnished and a copy of local procedures shall be made available upon request of any parents or guardians.
- Special education programs and services are available in the schools of District 149 and through the ECHO (Exceptional Children Have Opportunities) cooperative. The programs and services available are classified into two types, those of instructional programs (more than fifty percent of the school day) and those of supportive services (less than fifty percent of the school day).
- Instructional programs in District 149 schools are offered through cross categorical programs that serve students with handicaps in the areas of learning disabilities, behavior/emotional disorders, and mental impairment (educable mentally handicapped). Early childhood programming is available for handicapped children from ages three to five. In addition, ECHO, a cooperative of seventeen school districts in southern Cook County, provides classes for the trainable mentally handicapped and the severely behavior disordered or emotionally disturbed students. Other programs for students who are hearing, severely language, or physically impaired are available through District 149.

The District provides support services for students who need speech and language therapy, physical therapy, occupational therapy, social work services, psychological services, learning disability resource services, behavior/emotional disordered resource services, and special education transportation.

Before a student can receive special education programming and/or services a number of criteria must be met. These include:

- ✓ The student must be a resident of the district.
- ✓ The student must be registered in the district at the school that would normally be attended due to residency and age.
- ✓ The student must have a disability.
- ✓ A handicapping condition must result from the disability.
- ✓ The student must have an educational need.
- ✓ Appropriate procedural safeguards must be followed to guarantee the student's civil rights.

In order to ensure that the above criteria are met, placement into any of the special education programs and services is available only through the case study evaluation process.

Parents and residents are advised that they have rights under the special education laws and codes. A copy of these rights in brief is available from the Principal in their attendance center. Anyone having questions concerning the District special education programs and services and procedures are urged to contact **Theresa Smith, Director of Specialized Services at 708-868- 8300.**

District programs more frequently serve the high incidence handicapped. These conditions include: educable mentally handicapped, speech and/or language impaired, behavior/emotional disordered, and learning disabled.

Educable mentally handicapped students are those who function at a lowered intellectual level and demonstrate an inability to learn academic and nonacademic materials. They appear to have difficulty adapting to social expectations and demands placed on individuals at a given age and in a particular situation. These students tend to learn more slowly and with greater difficulty.

- Speech and/or language impaired students are those with a deviation of speech and/or language processes which are outside the range of acceptable deviations within a given environment and which prevent full social or educational development of the child. This includes communication disorders such as stuttering, impaired articulation, language impairment or a voice impairment, which adversely affects a child's educational performance.
- A behavior/emotional disorder is characterized by emotional, and or behavioral functioning that adversely affects the student's educational, social, and/or emotional development. This includes appropriate academic skills, social interactions, interpersonal relationships, or intra-personal adjustment. This condition denotes intra-individual and/or inter-individual conflict or variant or deviant behavior, or any combination thereof, exhibited in the social system of the school, and which may be recognized by the student and/or significant others.
- A specific learning disability is a dysfunction of one or more processes in an individual's learning pattern. These specific difficulties in processing information may occur within a single learning system or through any combination of systems (auditory, visual, motor); at the perceptual, conceptual and/or expressive level, in quantitative thinking; or in one or more of the various skills in attention behaviors. The consequence of these deficiencies' effects actual achievement, space and time judgments, listening, and personal relationships. There must also be a significant discrepancy between the student's ability and achievement.

STUDENT IDENTIFICATION CARDS

Student, staff, and visitor ID's (identification cards) will be used at all Middle Schools. Each student and staff member will have a plastic ID card with his or her picture, name, bus number (if applicable) and bar code on it. These ID's are planned to identify persons who belong in the building or a part of the building. The codes may be used in the library for book loans and for textbook assignment. **ALL MIDDLE SCHOOL STUDENTS MUST WEAR THEIR SCHOOL ID's DAILY TO SUPPORT SAFETY MECHANISMS IN THE BUILDING!**

STUDENT RECORDS (continued)

DEFINITIONS

Student

A person who is enrolled or has been enrolled as a student in the District.

Parent

A parent, guardian, or an individual acting as a parent in the absence of a parent or guardian of a student who has not reached eighteen years of age or is not attending an institution of post-secondary education. It will be assumed that a parent has the authority to exercise the rights established in this policy unless the Superintendent has been furnished with evidence of a court order to the contrary.

Adult Student

A student who has attained eighteen years of age or is attending an institution of post-secondary education.

Minor Student

A student who does not meet the definition of "adult student."

Education Records

All records, files, documents and other materials which are maintained by the District or by a person or agency acting for the District, which contain information directly related to a student, including personally identifiable information, such as the name of the student, student's parents or other family member, the address of the student, a personal identifier such as the student's social security number or student number, a list of personal characteristics which would make it possible to identify the student with reasonable certainty, but excluding the following:

- ✓ Records of instructional, supervisory, administrative personnel and educational personnel ancillary thereto which are in the sole possession of the information in a maker, and are not accessible or revealed to any other person except a temporary substitute, and student's education records concerning inspection of or request for inspection of the records, and directory information, as defined below.

Directory Information

A student's name, parent's name, address, gender, telephone number, grade level, date and place of birth, participation in officially recognized activities and sports, weight and height of members of athletic teams, dates of attendance and awards received. The District may disclose any of these items without prior written consent, unless notified in writing.

OFFICIAL RECORDS CUSTODIAN

The Superintendent is the official records custodian of the District.

CONFIDENTIALITY OF EDUCATION RECORDS

No person or institution shall be given access to education records of the District except as follows:

- **Parents and Adult Students**

Parents may examine the education records of the District relating to their minor child or children and adult students may examine their education records at such times and in such manner as the Superintendent may by regulation prescribe, provided that no more than fifteen days shall elapse between the date of the written request by the parent or adult student and the date on which the records shall be made available for examination.

- **Minor Students**

Education records of minor students may be released directly to the student or otherwise disclosed to him or her when deemed educationally appropriate by the Superintendent, the student's teacher or principal or any other employee of the District assigned the responsibility of advising or counseling the student.

- **Personnel of the District**

Education records may be released for examination to any member of the teaching, counseling or administrative staff of the District having a current demonstrable educational or administrative interest in the student and the records are in the furtherance of such interest.

- **Officials of Other School Systems**

Educational records or copies thereof but not including psychological, social work, and learning disability reports, may be furnished to officials of a school not operated by School District 149 or to another school district in which the student has enrolled or intends to enroll provided that the receiving school or system furnishes a written request for the records. Psychological, social work and learning disability reports relating to a student shall be furnished only if authorized in writing by the student's parents or an adult student.

- **Governmental Representatives**

Education records may be furnished to State and Federal government authorized representatives identified in subsection (b) (1) (C) and subsection (b) (1) (E) of the Family Educational Rights and Privacy Act of 1974 (20 U.S.C. 12329) under the conditions set forth in said Act any regulations issued by the Department of Health, Education, and Welfare Pursuant thereto.

- **Financial Aid Officials**

Education records may be furnished to financial aid officials in connection with a student's application for, or receipt of financial aid.

- **Organizations Conducting Studies**

Education records may be furnished to a person or organization conducting studies for, or on behalf of, educational agencies or institutions for the purpose of developing, validating or administering predictive tests, administering student aid programs, and improving instruction, provided:

- ✓ Such person or organization has the permission of the State Superintendent of Education.
- ✓ No student or parent can be identified from the information released.
- ✓ Such information will be destroyed when no longer needed for the purpose for which it is collected.

- **Accrediting Organizations**

- ✓ Education records may be furnished to accrediting organizations in order to carry out their accrediting functions.

- **Appropriate Persons in an Emergency**

Education records may be furnished in connection with an emergency to appropriate persons if knowledge of such information is necessary to protect the health or safety of a student or other persons. The parents shall be notified as soon as possible of the information released, the date, purpose, and to whom released. The factors to be considered in determining whether records should be released are:

- ✓ The seriousness of the threat to an individual's health or safety.
- ✓ The need for such records to meet the emergency.
- ✓ Whether the persons to whom such records are released are in a position to deal with the emergency.
- ✓ The extent to which time is of the essence in dealing with the emergency. These factors should be strictly construed

- **Compliance with Judicial Orders**

Education records may be furnished in compliance with a court order provided that both the parents and/or adult student be promptly notified in writing of the order and the nature and substance of the information proposed to be released as well as the right to inspect, copy, and challenge the contents of the record.

- **Other Persons**

Education records may be furnished to other persons or agencies upon the prior, dated, written request or consent of a parent, which specifies the particular records to be released, the reasons for such release and the person to whom the records are being released. If a consent is requested by district officials the parents shall be notified of their right to inspect, copy, and challenge the records or to limit the consent to designated portions of the record.

- **Third Party Access**

Upon the disclosure or release of education records of a student to any person or institution other than the student, his/her parent or other personnel of the District as provided in subsection (c) of this section, the recipient shall not permit any other person to have access to the record or the information which it contains without the written consent of the parents or adult student.

COPIES OF EDUCATION RECORDS

Copies of education records shall be furnished to a parent or adult student upon written request. A nominal fee will be charged for this service. If the records involve answers to a standardized or psychological test, the District will not provide a parent a copy of such test questions or the answers thereof.

MAINTAINING PRIVACY OF OTHER STUDENTS

If any material or document in the education records of a student includes personally identifiable information on other students such material or document shall not be available for examination or copying by the student's parents or by an adult student nor furnished to officials of other schools unless that portion identifying other students has first been concealed or removed.

HEARINGS

A parent or adult student shall have an opportunity for a hearing to challenge the contents of the student's education records to ensure that the records are not inaccurate, misleading or otherwise in violation of the privacy or other rights of the student, to provide an opportunity for the correction or deletion of any inaccurate, misleading or otherwise inappropriate data contained therein and to insert into such records a written explanation respecting their contents.

DIRECTORY INFORMATION

The District shall make public directory information only after the Superintendent has given public notice of the categories of information which he has designated as such information with respect to each student enrolled in the District, and only after a reasonable period of time has elapsed after such notice has been given for a parent or adult student to inform the Superintendent that some or all of the information designated should not be released without the parent or adult student's prior written consent. The notice to be given hereunder shall be given at least annually and as soon as practicable just prior to or following the beginning of each school term. Publication in this Parent Handbook is considered to meet this requirement for annual notification.

REGISTER OF REQUESTS FOR ACCESS TO EDUCATION RECORDS

A record or register shall be maintained as a part of each student's folder of all persons and institutions who have requested or obtained access to a student's education records other than the student, his/her parents, personnel of the District described in Section 3(C) and persons to whom access is given pursuant to a written consent or request of a parent or adult student. The register shall indicate the identity of the persons or institutions requesting or obtaining access and the legitimate interests these parties had in requesting or obtaining the information.

The register so established as a part of a student's folder shall be available only to the student's parents, the student (if an adult student), the custodian of the folder and to school officials or other governmental officials authorized to audit the system.

CATEGORIES OF RECORDS

Student Permanent Record consisting of education information is categorized as follows:

- ✓ Basic identifying information, including students' and parents' names and addresses, birth date, place of birth, and gender;
- ✓ Academic transcript, including grades, class rank, graduation date, and grade level achieved;
- ✓ Attendance record;
- ✓ Accident reports and health record;
- ✓ Register of requests for and access to education records; and
- ✓ Descriptions of honors and awards receive

Student Temporary Record consisting of all information not required to be included in the Student Permanent Record. All information added to a Student Temporary Record shall include the name, signature and position of the person who added the information and the date of its entry.

REVIEW AND DESTRUCTION OF RECORDS

- ✓ Student records shall be reviewed every four years or upon a student's change in attendance centers, whichever occurs first, to verify entries and to eliminate or correct all out-of-date, misleading, inaccurate, unnecessary or irrelevant information.
- ✓ Any psychological evaluation, special education files or other information, which may be of continued assistance to a handicapped student, may be transferred to the custody of the student's parent upon the student's permanent withdrawal from enrollment.
- ✓ Student's temporary record not previously destroyed shall be destroyed not sooner than four years nor later than five years after the student's permanent withdrawal from enrollment. A student's permanent record shall be maintained indefinitely.
- ✓ Parents shall be notified of the destruction schedule of education records upon the permanent withdrawal of a student from enrollment.
- ✓ No part of a student's record shall be destroyed which is at that time the subject of an oral or written request for examination by a parent or adult student.

ANNUAL NOTIFICATION

The Superintendent shall annually notify the parents of students enrolled or about to be enrolled in the District of the rights afforded them under Section 438 of the General Education Provisions Act and under the Illinois School Student Records Act.

REGULATIONS

The Superintendent of Schools of the District shall promulgate regulations for the enforcement and administration of the provisions of this Policy.

FREEDOM OF ASSOCIATION

Generally, a student is free to join any organization or society he or she chooses while in school. However, a public-school fraternity, sorority, or secret society has been declared by state law to be "inimical" (harmful) to the public good," and any student who joins such an organization or tries to get other students to join is subject to suspension or expulsion. A fraternity, sorority, or secret society is an organization in which the members are chosen by the membership of the organization rather than the membership being open by free choice to all qualified students. A public-school student organization that discriminates solely on the basis of race, creed, sex, or national origin should not be permitted to use school facilities for any purpose.

SURVEILLANCE

Staff, students, and parents are informed that District 149 buildings, both inside and outside, may be under video and/or audio surveillance in addition to the surveillance of security personnel. The primary reason for this surveillance is the protection of all who enter the building and for the protection of District and personal property. District 149 feels that it must do everything possible to make the District's facilities safe and secure for all who are legal and appropriately on District property. While most of this surveillance is passive and does not stop, impede or even intrude on normal activity, adults and students should be aware that they may be asked to identify themselves and explain why they are asking to enter the building or why they are in a particular part of the building. Recordings of this surveillance may be used to substantiate testimony or to provide evidence in District hearings or may be turned over to law enforcement officials for their use.

PROMOTION

The decision to promote a student to the next grade level shall be based on successful completion of the curriculum, attendance and performance based on local testing. No

RETENTION

Retention of a student shall be considered when the district's professional staff determines that it is in the best interest of the student. Whenever retention of a student is being considered, the parents or guardian shall be invited to a meeting to discuss the student's academic standing with the principal and appropriate professional staff.

ACCELERATION

Acceleration may be considered for a student whose performance and maturation is significantly above his or her grade level and whose assignment to an advanced grade level is judged to be beneficial to the student. Advanced placement of a student shall only be implemented after the principal and appropriate professional staff members have discussed the placement with the student's parents or guardians. (105 ILCS 5/10-20.9a)